

Tentative Rulings for Department 403

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Tentative Ruling

Re: ***Tiwana v. Muskan Food & Fuel, Inc.***
Superior Court Case No. 25CECG01290

Hearing Date: June 2, 2026 (Dept. 403)

Motion: Demurrer and Motion to Strike Third Amended Complaint of Defendants Rajdeep Singh, Navdeep Singh, and Muskan Food & Fuel, Inc.; Joinder by Defendant Gurmej Singh.

Tentative Ruling:

To strike the Third Amended Complaint, filed without leave of court, in its entirety, without prejudice to plaintiff's right to file a motion for leave to amend under Code of Civil Procedure section 473. (Code Civ. Proc. § 436, subd. (b).) To find the demurrer to the Third Amended Complaint moot.

Explanation:

A defendant may move to strike a pleading or allegations from a pleading in two situations: (a) the allegation is "irrelevant, false, or improper" or "superfluous" or "abusive" and (b) where the "pleading was not drawn in conformity with the laws of the state or a court rule." (Code Civ. Proc. § 436, subd. (a), (b).)

On September 3, 2025, the court issued its ruling sustaining the demurrer of defendants Rajdeep Singh, Navdeep Singh, and Muskan Food & Fuel, Inc. to the First Amended Complaint. The court granted leave to amend the complaint to allow plaintiff to cure the defects identified in the demurrer with the exception of the Tenth Cause of Action. On September 23, 2025 plaintiff filed the Second Amended Complaint. Subsequently, on December 3, 2025 plaintiff filed the Third Amended Complaint. Leave of court to file the Third Amended Complaint was not sought by stipulation of the parties or by noticed motion.

Defendants' motion to strike argues that causes of action were added in the Third Amended Complaint not previously pled in the First Amended Complaint and for which leave to amend was not granted. The court agrees and finds further that the entire Third Amended Complaint filed without leave of court is subject to strike as not filed in conformity with Code of Civil Procedure section 472, allowing amendments to the complaint once before the filing of a responsive pleading. The First Amended Complaint was filed June 4, 2025 pursuant to Code of Civil Procedure section 472. The right to amend without leave of court is limited to the original complaint and does not extend to amended complaints. (*Hedwall v. PCMV, LLC* (2018) 22 Cal.App.5th 564, 571.)

Therefore, the Third Amended Complaint was not drawn in conformity with Code of Civil Procedure section 472, subdivision (a) and is stricken.

In light of the court's ruling striking the Third Amended Complaint, the demurrer to the Third Amended Complaint is moot.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: Img on 6-1-26
(Judge's initials) (Date)